APEX PERFORMANCE

APEX PERFORMANCE · MOBILE APP

Privacy Policy

Apex Performance mobile app (Android and iOS)
Effective from: 9 November 2026

This policy explains what personal data the Apex Performance mobile app (the "App") processes, why, who it is shared with and what rights you have. The App is used by clients and coaches of the Apex Performance centre to manage appointments, track progress and browse workouts.

1. WHO PROCESSES YOUR DATA

The App is developed and maintained by **RDD Software** (R.D.D., obrt za računalno programiranje (a Croatian sole proprietorship for computer programming), owner Milan Trbojević, Mihovilići 2b, 51000 Rijeka, Croatia, OIB (personal ID / tax number): 09887105714), email: info@rdd.software.

The App is a product of R.D.D. and is used by the Apex Performance centre (Apex Performance, obrt za usluge (a Croatian sole proprietorship), owner Gabriel Mihelčić, Trtni 21, Mladenići, Viškovo, Croatia, OIB: 81729432712) to work with its clients. Under the General Data Protection Regulation (GDPR) the roles are as follows:

- **The Apex Performance centre is the controller** of the data about its clients and coaches – it decides who gets an account, which training and measurement data is recorded and for what purpose.
- **R.D.D. is a processor** – it processes that data on behalf of the centre and on its instructions, under a data processing agreement.
- **R.D.D. is the controller** of the data it processes for its own purpose of running the App: technical logs and data needed for the security and reliability of the system.

For any privacy question or to exercise your rights, you can contact the centre or us at info@rdd.software – we will forward requests to the centre and help it handle them.

2. WHAT DATA WE PROCESS

User accounts are created by the Apex Performance centre; you can't sign up inside the App. We process only the data the App needs to work:

CATEGORY	DATA	SOURCE
Account	username, password, role (client, coach, administrator)	centre, you
Profile	first and last name, email address, mobile phone number, profile picture (if you add one)	centre, you
Training and appointments	appointments and their status, appointment, cancelation and join requests with your comment, remaining sessions (credits), date of last payment, training plan, assigned coach	you, coach, centre
Chat	messages between you and your coach (text, images and GIFs you send, shared workouts), when they were sent and read; blocking and reporting a conversation	you, coach
Body measurements and assessments	height, weight and circumferences (shoulders, chest, upper arm, waist, thigh, calves, glutes) with the measurement date; FMS (Functional Movement Screen) results and coach notes	coach
Heart rate during trainings (iOS only, with your permission)	lowest, highest and average heart rate during a training with your coach, calculated from Apple Health (Apple Watch or a chest strap); the time the training started and ended	your device (Apple Health), coach
Device and notifications	push notification token, platform (Android/iOS), app version, operating system version, device model	your device
Technical logs	IP address, time and type of requests to the server, error logs	server
Crash reports	when the App crashes: where in the code it happened, app version, operating system version, device model, time of the crash and a random identifier of the installation (not linked to your name or account)	your device

Apple Health: if you allow it, the App reads heart rate measurements from Apple Health on your iPhone, only for the time between the start and end of a training marked by your coach. It calculates the lowest, highest and average heart rate on your device and sends only these three values; individual measurements never leave your device. The App does not write anything to Apple Health, does not read other health data, and does not use data from Apple Health for advertising or share it with third parties.

Body measurements, FMS assessments and heart rate may reveal information about your health and fitness. We process them only so that you and your coach can track your progress and plan your training.

The App does **not** collect your location, contacts or other content on your device, does not show ads, does not track you across other apps and does not sell data. You choose a profile picture yourself through the system photo picker, so the App has no access to your other photos.

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3. WHY WE PROCESS DATA AND ON WHAT LEGAL BASIS

- **Providing the service** – signing in, booking and managing appointments, keeping track of credits, progress tracking and coaches working with their clients. Basis: performance of your contract with the centre (Art. 6(1)(b) GDPR).
- **Chat** – messages between you and your coach, so you can agree on trainings and ask questions. You can block a conversation; either side can report it, and the administrator of the centre then receives the reason and the last 50 messages by email to review it. Basis: performance of the contract.
- **Body measurements and FMS assessments** – recording and showing your measurements and movement assessments to track your progress. Because they may reveal information about your health, they are processed only with your explicit consent (Art. 9(2)(a) GDPR), which you give to the centre before your first measurement. You can withdraw consent at any time with the centre or at info@rdd.software; after that no new measurements are recorded and existing ones are deleted. Withdrawing consent does not affect the other services.
- **Heart rate from Apple Health** – showing the lowest, highest and average heart rate with a training, so that you and your coach can follow the training load and your cardiovascular fitness. Basis: your explicit consent (Art. 9(2)(a) GDPR), given by allowing the App to read your heart rate. You can withdraw it at any time in the iPhone settings (Settings → Privacy & Security → Health → Apex); we delete the stored values on request at info@rdd.software.

- **Push notifications** – about new requests, appointment changes and new measurements. Basis: your consent, given by allowing notifications on your device, which you can withdraw at any time in the device settings.
- **System emails** – e.g. login details, password changes, the result of a workout import. Basis: performance of the contract.
- **Security and reliability** – preventing misuse and fixing errors using technical logs and crash reports. Basis: legitimate interest (Art. 6(1)(f)).

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4. WHO HAS ACCESS TO THE DATA

- **Coaches and administrators of the centre** – see the data of their clients they need for their work (appointments, credits, measurements, FMS, heart rate during trainings).
- **Google (Firebase Cloud Messaging)** – processes the device token and notification content to deliver push notifications. Firebase privacy.
- **Google (Firebase Crashlytics)** – receives crash reports from the App, so we can find and fix errors. Firebase privacy.
- **YouTube (Google)** – workout videos are shown with the embedded YouTube player only when you start a video. YouTube then receives your IP address and device information under its privacy policy.
- **Server** – the App and all data are hosted on our own server (Windows Server) operated by R.D.D., in Rijeka, Croatia. We do not store data with external hosting providers.
- **Google (Gmail)** – system emails are sent through Google's email service, so Google processes the recipient's email address and the message content.
- **Public authorities** – only when required by law.

All service providers process data only on our instructions. Where data is transferred outside the European Economic Area (e.g. to Google), the transfer relies on the European Commission's standard contractual clauses or another lawful mechanism.

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5. DATA ON YOUR DEVICE

After you sign in, the App keeps only an access token on your device, encrypted with a key from the device's secure storage (Android Keystore or iOS Keychain). Your password is not stored on

the device. The token is deleted when you log out; on Android it is also deleted when you uninstall the App and is excluded from device backups.

6. HOW LONG WE KEEP DATA

We keep data while your account is active. After the account is closed or you ask for deletion, we delete or anonymise the data within 30 days, except data we are legally required to keep longer (e.g. accounting records). Technical logs and crash reports are kept for at most 90 days. Logging out invalidates the notification token, so the device no longer receives notifications; the device record is deleted together with your account.

7. DELETING YOUR ACCOUNT AND DATA

You can request deletion of your account and related data by emailing info@rdd.software with the subject "Account deletion" from the email address linked to your account, or in person at the Apex Performance centre. Deletion removes your user account, profile, profile picture, body measurements, FMS assessments, requests and device tokens. We handle requests within 30 days. You can also ask us to delete only some data (e.g. your profile picture or measurements) without closing your account.

8. YOUR RIGHTS

Under the General Data Protection Regulation (GDPR) you have the right to access your data, to rectification, erasure, restriction of processing, data portability and to object to processing, and the right to withdraw consent at any time, without affecting the lawfulness of processing before withdrawal. You can correct some data yourself (name, email, mobile phone, profile picture) in the App under **Profile → Edit profile**. For anything else, write to info@rdd.software.

If you believe your data is processed unlawfully, you can lodge a complaint with the Croatian Personal Data Protection Agency (AZOP), azop.hr, or with the supervisory authority in your country.

9. CHILDREN

The App is intended for people aged 16 and over. The centre does not open accounts for anyone under 16 and does not knowingly collect their data. If we learn that an account belongs to

someone under 16, we will delete the account and related data. If you believe this has happened, contact us at info@rdd.software.

10. SECURITY

All data between the App and the server is sent over an encrypted connection (HTTPS). Access to data is limited by role: a client sees only their own data and a coach the data of their clients.

11. CHANGES TO THIS POLICY

We may update this policy from time to time. The current version is always published on this page with its effective date. We will let you know about significant changes in the App or by email.

12. CONTACT

RDD Software – R.D.D., obrt za računalno programiranje, owner Milan Trbojević · Mihovilići 2b, 51000 Rijeka, Croatia
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